

111	2026-01548956 Audenis vs. Airbnb, Inc	1. Motion to Compel Arbitration 2. Case Management Conference Defendant Airbnb, Inc.'s unopposed motion to compel arbitration of Patrick Audenis' claims is granted. Defendant has established a valid arbitration agreement between the parties. Plaintiff filed a response to Defendant's motion stating that he does not oppose and has voluntarily initiated arbitration proceedings before the American Arbitration Association, and that arbitration is presently pending. Accordingly, the motion is granted, and this matter is hereby stayed pursuant to Code Civ. Proc., § 1281.4. The case management conference is vacated. The Court sets a status conference on October 4, 2027 at 10:00 a.m. in Dept. C27. At least 5 court days prior, Defendant is ordered to file a status conference report updating the Court on the status of arbitration. Defendant shall give notice.
112	2025-01526956 Mandell vs. O'Donnell	1. Petition for Writ 2. Case Management Conference Petitioner Jeffrey Mandell's Petition for a peremptory writ of mandamus requiring Respondents Brendan O'Donnell and BodEv, Inc. to allow him to inspect and copy the records of BodEV, Inc. pursuant to Corp. Code § 1603(a) is granted. Code of Civil Procedure §1085 authorizes any court to issue a writ of mandate to "any inferior tribunal, corporation, board, or person, to compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station, or to compel the admission of a party to the use and enjoyment of a right or office to which the party is entitled, and from which the party is unlawfully precluded by that inferior tribunal, corporation, board, or person." (Code Civ. Proc., § 1085.) One such instance is where a shareholder seeks such an order through a Corporations Code section 1601 demand, or a director seeks such an order through a Corporations Code section 1602 demand for inspection and copying of corporate records and documents. There are two essential requirements to the issuance of an ordinary writ of mandate under Code of Civil Procedure section 1085: (1) a clear, present and ministerial duty on the part of the respondent, and (2) a clear, present and beneficial right on the part of the petitioner to the performance of that duty. (<i>California Ass'n for Health Services at Home v. Department of Health Services</i> (2007) 148 Cal.App.4th 696, 704.) A shareholder (or group of shareholders) owning at least 5% of the corporation's outstanding voting shares has an <i>absolute, unconditional right</i> to inspect the list of shareholders. (Corp. Code §1600(a).) A shareholder also has a <i>limited</i> right to inspect the corporation's accounting books, records, as well as minutes of proceedings of the shareholders, board and board committees. Such records and minutes are open to inspection upon <i>written</i> demand showing a "<i>purpose reasonably related</i> to the holder's interests as a shareholder ..." (Corp. Code §1601(a)(1).)